

**FIRST TESTIMONY
FIRST OF ITS ORDER**

DEED: 52,268

VOLUME: 1084

DATE: December 20th, 2013

**LEGAL ACT: INCORPORATION OF THE CONDOMINIUM
PROPERTY REGIME NAMED SAMPAGUITA**

VOLUME 1084 (ONE THOUSAND EIGHTY FOUR)
DEED 52,268 (FIFTY TWO THOUSAND TWO HUNDRED AND SIXTY EIGHT)
FOLIO 88882 TO 88885

In the city of La Paz, state Capital of Baja California Sur, United Mexican States on the 20th twentieth day of the month of **December** of the year **2013** Two Thousand Thirteen, I, attorney **CARLOS ARAMBURO ROMERO**, Public Notary Number Three and of the Federal Immovable Patrimony, with practice in this Federal Entity, with practice in this Federal Entity, with residence in this State Capital, I note for the record by means of the present instrument:

The **INCORPORATION** of the **CONDOMINIUM PROPERTY REGIME** named **SAMPAGUITA**, located on Lot 02(zero two), Beachfront Section, of the Tourism Zone of the San Jose del Cabo Development, Municipality of Los Cabos, Baja California Sur, granted by mister **JUAN FRANCISCO ARZATE VARGAS** in his position as Administrative Assistant of Justice regarding Civil Proceeding 406/2001, filed in the Court of First Instance of the Civil and Family Branch of the Jurisdiction of San Jose del Cabo, Baja California Sur, in compliance with the following statements and clauses:

STATEMENTS

Mister **JUAN FRANCISCO ARZATE VARGAS**, with the position that has been indicated, states under oath, to tell the truth, that:

a) NACIONAL FINANCIERA, S.C.N. (previously Nacional Financiera, S.A.) INSTITUCION FIDUCIARIA DEL GOBIERNO GENERAL DENTRO DEL FIDEICOMISO DENOMINADO FONDO NACIONAL DE FOMENTO AL TURISMO is the proprietor and legitimate owner of Lot number 2 (two), Block 2 (two), Beachfront Section of the Tourist Zone of the San Jose del Cabo Development, Baja California Sur, cadaster code 401-001-113-024 (four hundred and one dash zero zero one dash one hundred thirteen dash zero twenty four) with a surface of 10,119.72 m² (ten thousand one hundred and nineteen meters seventy two centimeters square), 1-01-19.72 ha. (one hectare one area nineteen point seventy two centiares) with the following measurements and boundaries:

TO THE NORTH: in broken line of 36.53m, 10.35m and 20.95m adjacent with fraction a of lot 2.

In two curved segments of 12.85m and 20.81m adjacent with fraction A of lot 2.

In straight line of 3.02m adjacent with fraction A of lot 2.

TO THE SOUTH: in broken line of 41.47m and 51.11m adjacent with Gulf of California.

TO THE EAST: In straight line of 110.78m adjacent with beach access and lot 3.

TO THE WEST: In straight line of 112.83m adjacent with lot 1.

CONSTRUCTION AREA

CONSTRUCTION AREA FOR THE ZONE OF LOT NO. 2						
SIDE		DIRECTION	DISTANCE	V	COORDINATES	
					Y	X
	13			13	2,548,498,9691	632,672,6630
13	12	N 57°27' 56"E	36.53	12	2,548,518,6160	632,703,4616
12	11	S 32°47' 29"E	10.35	11	2,548,509,9133	632,709,0632
11	10	N 57°29' 57"E	20.95	10	2,548,621,1692	632,726,7359
10	9	N 41°28' 37"E CENTER OF DELTA CURVE= 37°48'53" RADIUS= 19.46	12.61 LONG. CURVE= 12.85 SUB. TAN=6.67	9	2,548,530,6194	632,735,0899
				B	2,548,538,0893	632,717,1178
9	8	N 41°13' 12"E CENTER OF DELTA CURVE= 28°40'46" RADIUS= 41.57	20.59 LONG CURVE= 20.81 SUB.TAN= 10.53	8	2,548,546,1083	632,748,6590
				A	2,548,511,8239	632,772,1695
8	7	N 56°32' 59"E	3.02	7	2,548,547,7713	632,751,1762
7	3	S 32°25' 50"E	110.78	3	2,548,454,2699	632,810,5839
3	4	S 52°41' 47"W	41.47	4	2,548,429,1375	632,777,5971
4	5	S 60°14' 47"W	51.11	5	2,548,403,7731	632,733,2251
5	13	N 32° 27'50" W	112.83	13	2,548,498,9691	632,672,6630
SURFACE= 10,119.72 M2 1-01-19.72 ACRES						

b) The previously described property of NACIONAL FINANCIERA, S.C.N. (PREVIOUSLY Nacional Financiera, S.A.) FIDUCIARY INSTITUTION OF THE GENERAL GOVERNMENT WITHIN FIDEICOMISO NAMED NATIONAL FUND FOR TOURISM PROMOTION is registered in the Public Registry of Property and Commerce of Los Cabos, Baja California Sur, under number 101 (one hundred and one), page 339 (three hundred and nine), Volume XL E. p., First Section, dated October 19(nineteen) of 1992 (nineteen ninety two).

c) that by means of Public Deed 51,940 (fifty one thousand nine hundred and forty), Volume 1077 (one thousand seventy seven), dated October 12 (twelfth) 2013 (two thousand thirteen), issued before the faith of the Undersigned Public Notary , dully registered in the Public Registry of Property and Commerce of Los Cabos, Baja California Sur, under number 115 (one hundred and fifteen), page 115 (one hundred and fifteen), Volume DLVI E.p., of the First Section, dated October 25 (twenty fifth) 2013 (two thousand thirteen), the legalization of THE FORMAL REGISTRY OF SUBDIVISION NUMBER **SUBD/088/PU/2013 FOLIO 641/2013** issued by the General Office of Urban Planning and Development and the Municipal Office of Urban Planning of the H. XI City Hall of Los Cabos, from which the property object of the present instrument is detached and has been described in section a) preceding.

Documents which I the undersigned Notary attest to have had in view attaching them as copies to the Addenda of the present instrument with file marked with letter “A”.

d) OF THE INCORPORATION OF CONDOMINIUM PROPERTY REGIME:

that upon the lot of the property described in section a) preceding, it has been determined to incorporate a Condominium Development with residential purposes, having requested and obtaining the authorizations and permits from the state, municipal and federal authorities and offices, described as follows:

MUNICIPAL AUTHORIZATION OF PROPERTY IN CONDOMINIUM REGIME AND ALLOCATION OF CADASTER CODES. That by means of record number DMC/XI/96/2013, dated November 26 (twenty sixth) of 2013 (two thousand thirteen) issued by the Honorable XI City Hall of Los Cabos, Baja California Sur, Municipal Office of Cadaster, the AUTHORIZATION was obtained for the Incorporation of Property in Condominium Regime named **SAMPAGUITA**, within the property identified as Lot number 2 (two), Block 2 (two), Section Beachfront of Tourist Zone, of the San Jose del CABO Development, Baja California Sur, with cadaster code 401-001-113-024 (four hundred and one dash zero zero one dash one hundred thirteen dash zero twenty four) with a surface of 10,119.72 m2 (ten thousand one hundred and nineteen meters and seventy two centimeters square), 1-01-19.72 ha. (one hectare one ares nineteen point seventy two centiares) on which the allocation of cadaster codes was authorized of each and everyone of the unites that incorporate the Condominium Regime named **SAMPAGUITA**, allocating the following cadaster codes:

UNIT	CADASTER CODE
1	401001113024-00V001
2	401001113024-00V002
3	401001113024-00V003
4	401001113024-00V004
5	401001113024-00V005
6	401001113024-00V006
7	401001113024-00V007
8	401001113024-00V008
9	401001113024-00V009
10	401001113024-00V010
11	401001113024-00V011
12	401001113024-00V012
13	401001113024-00V013
14	401001113024-00V014

Document which I the Undersigned Notary in original attest to have in view attaching to the Addenda of the present instrument with file marked with letter “B” and a copy of such is attached to the Proof from which this deed is issued.

AUTHORIZATION OF CHANGE OF PROPERTY REGIME TO PROPERTY IN CONDOMINIUM. That by means of Registry CR/039/PU/2013, Folio 803/2013, dated November 14(fourteenth) of 2013 (two thousand thirteen), issued by the Municipal Office of Urban Planning, the **INCORPORATION OF CONDOMINIUM PROPERTY REGIME** named **SAMPAGUITA** developed upon Lot number 2 (two), Block 2 (two), Section Beachfront of Tourist Zone, of the San Jose del CABO Development, Baja California Sur, with cadaster code 401-001-113-024 (four hundred and one dash zero zero one dash one hundred thirteen dash zero twenty four) with a surface of 10,119.72 m2 (ten thousand one hundred and nineteen meters and seventy two centimeters square), 1-01-19.72 ha. (one hectare one ares nineteen point seventy two centiares).

Document which I the Undersigned Notary in original attest to have in view attaching to the Addenda of the present instrument with file marked with letter “C” and a copy of such is attached to the Proof from which this deed is issued.

d) that the property described in section a) of the statements, is free of liens and any possession responsibility, which is proven with the certificate issued by the public registry of property and commerce of the XI City Hall of Los Cabos, Baja California Sur, document which the Undersigned Public Notary, attests to have in view and which is attached to the Addenda of the present instrument with file marked with letter “D” and a copy of such is attached to the Proof from which this deed is issued.

e) **PROJECT NARRATIVE:** in this act the appearing party shows me the Project Narrative of the Condominium Property Regime named **SAMPAGUITA**, which consisting of 132 (one hundred and thirty two) pages, only on the obverse, is attached to the Addenda of the present instrument with file marked with letter “E” and a copy of such is attached to the Proof from which this deed is issued, consisting of:

1. LOCATION
2. GENERAL SHORING PLAN
3. INDIVIDUAL PLANS OF PRIVATE UNITS AND NARRATIVES
4. UNDIVIDED TABLE
5. INTERNAL CONDOMINIUM REGULATIONS
6. PROPERTY RECORDS

The previous being recorded the appearing parties issue the following:

CLAUSES

FIRST.- INCORPORATION.- Mister **JUAN FRANCISCO ARZATE VARGAS** in his character as Justice Administrative Assistant regarding the Civil Proceeding 406/2001, promoted at the First

Instance of Civil and Family Court of the Judicial Party in San Jose del Cabo, Baja California Sur in this act issues and attests the Incorporation of Condominium Property Regime named **SAMPAGUITA**, upon the property regarding section a) of the statements, whose characteristics are reproduced here as to the letter according to the terms, modalities, conditions and restrictions which are established in the present instrument.

SECOND.- the appearing party shows in this act the i) Undivided Table and ii) Project Narratives corresponding to the Condominium Property Regime named **SAMPAGUITA**, same that are inserted and transcribed to the Proof from which this deed is issued as Attachment “1” and “2”.

THIRD.- That derived from the Condominium Property Regime named **SAMPAGUITA** the cadaster codes allocated for the private units object of the present Regime are the following:

UNIT	CADASTER CODE
1	401001113024-00V001
2	401001113024-00V002
3	401001113024-00V003
4	401001113024-00V004
5	401001113024-00V005
6	401001113024-00V006
7	401001113024-00V007
8	401001113024-00V008
9	401001113024-00V009
10	401001113024-00V010
11	401001113024-00V011
12	401001113024-00V012
13	401001113024-00V013
14	401001113024-00V014

FOURTH.- OBJECT.- The Object of the Condominium Property Regime **SAMPAGUITA**, is to create a condominium system and administration for the development of the private units or of exclusive ownership and all aeras that form part of the same, with the purpose of operating, maintaining, repairing and administering such Regime, regulating the relations between the owners or title holders of condominium units within the same and defining the rights and obligations for the use and enjoyment of its areas.

FIFTH.- PURPOSE.- The Condominium Property Regime **SAMPAGUITA**, and the areas that integrate it must be used as a residential development, with the units that integrate such and the buildings that are built in the future upon the unites, designed according to the design guidelines for the Condominium and includes the necessary and diverse infrastructure, as well as the general

areas of use and the common grounds such as road systems electrical substations and interconnection lines, drainage system, water lines systems and in general all that are necessary and are required for complementary purposes.

SIXTH.- The condominium property regime, to this date is incorporated by each and every one of its private and common areas, whose characteristics, surfaces, measurements and boundaries as well as undivided and uses that are described and reproduced in the project narrative and have been attached to the addenda as an integrated part of this deed and except for the limitations and restrictions that are here established and those that by disposition of the Law be applicable, including the Internal Condominium Regulations, which will regulate all of the participants in the Condominium, including but not limited to, condominiums, users and occupants, trustees, tenants, administrators, oversight committee and in general everything that in one way or another may relate to the development.

SEVENTH.- APPLICABLE DISPOSITIONS.- The Condominium Property Regime is subject to and regulated by the dispositions specified within the present deed, the Civil Code and the Condominium Property Regime currently in the state of Baja California Sur and the Internal Regulations of the Condominium Property Regime.

EIGHTH.- PARTICIPATION IN COMMON AREAS AND CONTRIBUTIONS OF THE CONDOMINIUM PROPERTY REGIME.- Each of the areas or proposed individual condominium units that constitute the Condominium Property Regime and those established in the future, have a right to a proportional part upon the areas and common goods within the Condominium Property regime, according to the percentage table of undivided that are described and reproduced in the attachments of the present instrument.

Each homeowner shall have the obligation to contribute to the operating, maintenance, repair and administration costs of the common areas, in terms of the Internal Regulations of the Condominium and infrastructure of the Condominium Property Regime, including the manner including but not limited to: street and roadway maintenance, as well as walkways, public parks, landscapes, street lighting, provision of public services, garbage collection and security and those that the homeowners meetings, the administrator and or the oversight committee effectively establish. Such contributions shall be proportionate to the individual percentage of each condominium within the Condominium Property Regime. All that related to the establishment, payment, modification in such case and all other dispositions related to the contributions, shall be subject to that established in the Internal Regulations of the Condominium.

NINTH.- ADMINISTRATOR.- In the fulfillment of his/her charge as Administrator of the Condominium he/she shall have the obligations and faculties conferred by the Internal Regulations of the Condominium Property Regime, the Civil Code the Law for Condominium Property currently in the State of Baja California Sur.

TENTH.- MODIFICATIONS TO THE CURRENT DEED.- the present deed of Condominium Incorporation, may be modified by the grantor under the terms of that established in the Internal Regulations regarding the master condominium units.

With exception of the previous the Meeting may carryout the modifications to the deed in referral and the internal Regulations of the Condominium Regime under the terms established in the same.

ELEVENTH.- The regulation of communal living has as objective to preserve and regulate the integrity of the property, use, enjoyment, possession and improvements that are carried out at the Condominium named **SAMPAGUITA**, with the purpose of seeking the common good and improving its quality of life, increase surplus value of its family patrimony, social prestige, physical and patrimonial security; same that the appearing party shows me in this act and which forms part of the project narrative that has already been added to the Addenda of the file corresponding to this deed and another shall be added to the Proof from which the present deed is issued.

TWELFTH. – For everything regarding the interpretation and fulfillment of the present instrument, it shall be subject to the jurisdiction and competence of the courts of the City of San Jose del Cabo, Baja California Sur.

CAPACITY

Mister **JUAN FRANCISCO ARZATE VARGAS** proves his faculties with which he appears to the signature of the present instrument in his capacity as Administrative Assistant of the Justice regarding the Civil Proceeding 406/2001 with the Agreement dated 07 (seven) of November of 2011 (two thousand eleven) signed by attorney Victor Ruben Vargas Fort, Judge of First Instance of the Civil and Family Branch of the Judicial Party of Los Cabos, Baja California Sur, in San Jose del Cabo, Baja California Sur, document from which I copy the following: *"... San Jose del Cabo, Baja California Sur, on 074 days of November of the month of November of the year 2011 two thousand eleven.- AGREEMENT: Add to the present decrees the letter with which the Secretary accounts, to make effective the legal effects to take place; registered under promotion number 2518, presented by attorney ARMANDO SERRANO MARTIN, with character proven in decrees; the whole content being seen, have as filed EVENT OF EXCECUTION OF SENTENCE modified on 10 tenth of May of the year 2010 two thousand and ten, by the First Civil Chamber of the Honorable Superior Courthouse*

of Justice within the present trial, in consequence such incident is admitted by summary process under the terms of that disposed by articles 484, 485, 490 and 501 fraction III of the applicable Code of Civil Proceedings, and as long as the previously mentioned sentence advised that in the fifth resolute the defendant party NACIONAL FINANCIERA S.N.C. (PREVIOUSLY NACIONAL FINANCIERA S.A.) FIDUCIARY INSTITUTION OF THE GENERAL GOVERNMENT WITHIN THE TRUST NAMED FONDO NACIONAL DE FOMENTO AL TURISMO, to sign and grant the public deed before notary of this municipality and in favor of the legal entity named HALCON MARINO, S.A. DE C.V., the contracts of sale entered into on march 13th of 1995 and September 10th 1996, through which it purchased and acquired the codefendant property, the legal entity HALCON MARINO, S.A. DE C.V. of the codefendant NACIONAL FINANCIERA S.N.C. (PREVIOUSLY NACIONAL FINANCIERA S.A.) FIDUCIARY INSTITUTION OF THE GENERAL GOVERNMENT WITHIN THE TRUST NAMED FONDO NACIONAL DE FOMENTO AL TURISMO, regarding the goods described in such resolute, and as long as the state that the present decree may perpetrate and the certification of the account adverts that the granted term has for the defendant to fulfill that condemned in the fifth resolute of the mentioned sentence in the lines that precede, in consequence the decreed caution shall be made effective; by such virtue attorney CARLOS ARAMBURO ROMERO, Public Notary Number 3 of Baja California Sur, is assigned for effects to carryout the corresponding registration of the deed; therefore assisting the declarations and the process to carryout with grounds on article 501 fraction II, citizen JUAN FRANCISCO ARZATE VARGAS is assigned as ancillary of the Administration of Justice for effects of the execution of the present trial, whom shall be personally notified at the address located on Carretera Transpeninsular Km 26.5 The Shoppes at Palmilla Interior B2220, Los Cabos, Baja California Sur, in order to manifest if he accepts or not the conferred charge and its faithful performance, stating for such effects available days and hours, also such ancillary shall have the following faculties: a) the faculty to process and manage all the necessary documents to formalize the contract of sales of march 13th of 1995 and September 10 of 1996 (stage I). b) The faculty to request and process in all stages, the subdivision os Lot 2 in the manner agreed to in the Judicial Agreement (stage II).... BE NOTIFIED AND ABIDE BY.- Agreed and signed by attorney VICTOR RUBEN VARGAS FORT Judge of First Instance of the Civil and Family Branch of the Judicial Party of Los Cabos, with residence in this city, who acts before License B-221 ("B" dash two hundred and twenty one), Tiendas de Palmilla, San Jose del Cabo, Baja California Sur, Postal Code 23406 (twenty three thousand four hundred and six), and passing through this city, who is identified before the Public Notary with his Voters Credential with photograph identification number 0294056135069 (zero two nine four zero five six one three five zero six).

I, THE NOTARY, CERTIFY AND ATTEST:

A.- That that related and inserted faithfully concurs with that expressed by the appearing parties and with the documents to which I adhere to, which I had in sight.

B.- That I do not know the appearing parties, for which they identified themselves before me with a document containing photograph, name and signature, who in my judgement have legal capacity for this act, since nothing makes certain of the contrary.

C.- That the present instrument having been read to the appearing parties, to whom I explained the value and force of its content and having manifested acceptance, ratified and signed in verification.

D.- As well as the need if its registry in the Public Registry of Property, manifested in agreement of its content and signed it in verification. **I ATTEST.**

ADDENDA 1

Condominium Regime Development "SAMPAGUITA"								
Table of undivided								
CONCEPT		PRIVATE AREA FOOTING	INTERNAL UNDIVIDED	PRIVATE AREA BOTTOM FLOOR	CONSTRUCTED PRIVATE AREA TOP FLOOR	TOTAL CONSTRUCTED PRIVATE AREA	EXCLUSIVE USE PRIVATE AREA (TERRACE)	COMMON AREAS (GARDENS, CANALS, WALKWAYS, COURT, ROADWAYS, BEACH ACCESS, POOL AND SERVICE AREAS)
		M2	%	M2	M2	M2	M2	M2
PRIVATE AREA	VILLA 1	139.51	0.08235	139.51	45.96	185.47	142.55	671.81
PRIVATE AREA	VILLA 2	140.04	0.08267	140.04	46.17	186.21	0.00	674.36
PRIVATE AREA	VILLA 3	112.13	0.06619	112.13	44.18	155.31	0.00	539.96
PRIVATE AREA	VILLA 4	111.33	0.06572	111.33	43.89	155.22	0.00	536.11
PRIVATE AREA	VILLA 5	113.60	0.06706	113.60	45.99	159.59	0.00	547.04
PRIVATE AREA	VILLA 6	113.69	0.06711	113.69	46.03	159.72	0.00	547.47
PRIVATE AREA	VILLA 7	113.58	0.06705	113.58	46.03	159.61	0.00	546.94
PRIVATE AREA	VILLA 8	113.36	0.06692	113.36	45.92	159.28	0.00	545.89
PRIVATE AREA	VILLA 9	114.06	0.06733	114.06	45.99	150.05	0.00	549.25
PRIVATE AREA	VILLA 10	114.15	0.06738	114.15	46.03	160.18	0.00	549.69
PRIVATE AREA	VILLA 11	113.78	0.06716	113.78	45.62	159.40	0.00	547.91
PRIVATE AREA	VILLA 12	115.00	0.06789	115.00	46.06	161.06	0.00	553.78
PRIVATE AREA	VILLA 13	140.04	0.08267	140.04	46.27	186.31	0.00	674.35
PRIVATE AREA	VILLA 14	139.77	0.08251	139.77	46.06	185.83	125.48	673.05
SUM		1,694.04	1.00000	1,694.04	640.20	2,334.24	288.03	8,157.65

ADDENDA 2

VILLA 1

Has a private surface of 185.47 m2 in two floors, has three bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 139.51 M2

To the Northeast----- 0.81 m with common area and 5.88 m with roadway.

To the Southeast----- 21.56m with common area of exclusive use of Villa 1.

To the Southwest----- 6.69m with common area.

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

To the Northwest----- 15.72m with Villa 2 and 5.84m with common area;

Top Floor: 45.96 m2

To the Northeast---- 6.69m with empty lot

To the Southeast ---- 6.87 m with empty lot

To the Southwest ---- 6.69m with empty lot

To the Northwest ---- 6.87m with Villa 2

VILLA 2

Has a private surface of 186.21 m2 in two floors, has three bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 140.04 M2

To the Northeast----- 5.89 m with roadway and 0.83 m with common area.

To the Southeast----- 5.84m with common area and 15.72m with Villa 1.

To the Southwest----- 6.72m with common area.

To the Northwest----- 21.56m with common area;

Top Floor: 46.17 m2

To the Northeast---- 6.72m with empty lot

To the Southeast ---- 6.87 m with Villa 1

To the Southwest ---- 6.72m with empty lot

To the Northwest ---- 6.87m with Villa 2

VILLA 3

Has a private surface of 156.31 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 112.13 M2

To the Northeast----- 3.62 m with roadway and 3.10 m with common area.

To the Southeast----- 2.36m with common area; 15.42m with common area.

To the Southwest----- 6.72m with common area.

To the Northwest----- 17.78m with Villa 4;

Top Floor: 44.18 m2

To the Northeast---- 6.72m with empty lot

To the Southeast ---- 6.58 m with empty lot

To the Southwest ---- 6.72m with empty lot

To the Northwest ---- 6.58m with Villa 4

VILLA 4

Has a private surface of 155.22 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 111.33 M2

To the Northeast----- 3.10 m with common area and 3.57 m with roadway.

To the Southeast----- 17.78m with Villa 3.

To the Southwest----- 6.68m with common area.

To the Northwest----- 15.41m with common area and 2.36m with common area

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

Top Floor: 43.89 m2

To the Northeast---- 6.67m with empty lot

To the Southeast ---- 6.58 m with Villa 3

To the Southwest ---- 6.68m with empty lot

To the Northwest ---- 6.58m with empty lot

VILLA 5

Has a private surface of 159.59 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 113.60 M2

To the North----- 3.59 m with roadway and 3.10m with common area.

To the East----- 2.34m with common area and 15.73m with common area.

To the South----- 6.69m with common area.

To the West----- 18.07m with Villa 6

Top Floor: 45.99 m2

To the North---- 6.69m with empty lot

To the East ---- 6.88 m with empty lot

To the South---- 6.69m with empty lot

To the West ---- 6.87m with Villa 6

VILLA 6

Has a private surface of 159.72 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 113.69 M2

To the North----- 3.10 m with common area and 3.59m with roadway.

To the East----- 18.07m with Villa 5

To the South----- 6.70m with common area.

To the West----- 2.34m with common area and 15.73m with common area

Top Floor: 46.03 m2

To the North---- 6.70m with empty lot

To the East ---- 6.88 m with Villa 5

To the South---- 6.70m with empty lot

To the West ---- 6.88m with empty lot

VILLA 7

Has a private surface of 159.61 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 113.58 M2

To the Northeast----- 2.35 m with common area and 15.72 m with common area.

To the Southeast----- 6.69m with common area.

To the Southwest----- 18.06m with Villa 8

To the Northwest----- 3.59m with roadway and 3.10m with common area

Top Floor: 46.03 m2

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

To the Northeast---- 6.88m with empty lot
To the Southeast ---- 6.69 m with empty lot
To the Southwest ---- 6.88m with Villa 8
To the Northwest ---- 6.69m with empty lot

VILLA 8

Has a private surface of 159.28 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 113.36 M2

To the Northeast----- 18.06 m with Villa 7.

To the Southeast----- 6.67m with common area.

To the Southwest----- 15.72m with common area and 2.35m with common area

To the Northwest----- 3.08m with common area and 3.59m with roadway

Top Floor: 45.92 m2

To the Northeast---- 6.88m with Villa 7

To the Southeast ---- 6.67 m with empty lot

To the Southwest ---- 6.88m with empty lot

To the Northwest ---- 6.67m with empty lot

VILLA 9

Has a private surface of 160.05 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 114.06 M2

To the Northeast----- 2.38 m with common area and 15.77m with common area

To the Southeast----- 6.69m with common area.

To the Southwest----- 18.15m with Villa 10

To the Northwest----- 3.59m with roadway and 3.10m with common area

Top Floor: 45.99 m2

To the Northeast---- 6.87m with empty lot

To the Southeast ---- 6.69 m with empty lot

To the Southwest ---- 6.87m with Villa 10

To the Northwest ---- 6.69m with empty lot

VILLA 10

Has a private surface of 160.18 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 114.15 M2

To the Northeast----- 18.15 m with Villa 9

To the Southeast----- 6.69m with common area.

To the Southwest----- 15.77. with common area and 2.38m with common area

To the Northwest----- 3.10m with common area and 3.59m with roadway

Top Floor: 46.03 m2

To the Northeast---- 6.87m with Villa 9

To the Southeast ---- 6.70 m with empty lot

To the Southwest ---- 6.87m with empty lot

To the Northwest ---- 6.69m with empty lot

VILLA 11

Has a private surface of 159.40 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 113.78 M2

To the Northeast----- 2.34 m with common area and 15.89m with common area

To the Southeast----- 6.64m with common area.

To the Southwest----- 18.23m with Villa 12

To the Northwest----- 3.53m with roadway and 3.11m with common area

Top Floor: 45.62 m2

To the Northeast---- 6.87m with empty lot

To the Southeast ---- 6.64 m with empty lot

To the Southwest ---- 6.87m with Villa 12

To the Northwest ---- 6.64m with empty lot

VILLA 12

Has a private surface of 161.06 m2 in two floors, has two bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 115.00 M2

To the Northeast----- 18.23 m with Villa 11

To the Southeast----- 6.70m with common area.

To the Southwest----- 15.89m with common area and 2.34m with common area

To the Northwest----- 3.09m with common area and 3.62m with roadway

Top Floor: 46.06 m2

To the Northeast---- 6.87m with Villa 11

To the Southeast ---- 6.70 m with empty lot

To the Southwest ---- 6.87m with empty lot

To the Northwest ---- 6.70m with empty lot

VILLA 13

Has a private surface of 186.31 m2 in two floors, has three bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 140.04 M2

To the North----- 21.59 m with common area.

To the East----- 6.72m with common area

To the South----- 15.76m with Villa 14 and 5.84m with common area.

To the West----- 0.87m with common area and 5.85m with roadway

Top Floor: 46.27 m2

To the North---- 6.89m with empty lot

To the East ---- 6.72 m with empty lot

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

To the South---- 6.89m with Villa 14
To the West ---- 6.72m with empty lot

VILLA 14

Has a private surface of 185.83 m2 in two floors, has three bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Bottom Floor: 139.77 M2

To the North----- 5.83 m with common area and 15.76m with Villa 13.

To the East----- 6.69m with common area

To the South----- 21.59m with private area Villa 14

To the West----- 5.89m with roadway and 0.80m with common area

Top Floor: 46.06 m2

To the North---- 6.89m with Villa 13

To the East ---- 6.69 m with empty lot

To the South---- 6.89m with empty lot

To the West ---- 6.69m with empty lot

BEFORE ME ATTORNEY **CARLOS ARAMBURO ROMERO**, PUBLIC NOTARY NUMBER THREE, AND THE FEDERAL IMMOVABLE PATRIMONY, OF THIS FEDERAL ENTITY.- MISTER **JUAN FRANCISCO ARZATE VARGAS**. SIGNED.- THE CIRCULAR SEAL OF AUTHORIZATION PF THE NOTARY.- **I ATTEST.-**

ON THE DAY OF ITS ISSUANCE I DEFINITELY AUTHORIZE THE PRESENT DEED BY VIRTUE OF BEING EXEMPT FROM PAYMENT OF ANY TAX.- **I ATTEST.**

IT IS THE **FIRST** PROOF **FIRST** OF ITS ORDER TAKEN FROM ITS ORIGINAL, THAT IS NOTARIZED IN THE PRESENT EIGHT USEFUL PAGES COLLATED AND CORRECTED WITH REPAIR BY LAW, FOR USE OF **NACIONAL FINANCIERA, S.C.N. (PREVIOUSLY NACIONAL FINANCIERA, S.A.) FIDUCIARY INSTITUTION OF THE GENERAL GOVERNMENT WITHIN FIDEICOMISO NAMED NATIONAL FUND FOR TOURISM PROMOTION** THROUGH ATTORNEY **JUAN FRANCISCO ARZATE VARGAS** IN HIS CAPACITY AS ANCILLARY OF THE ADMINISTRATION OF JUSTICE REGARDING CIVIL PROCEEDING **406/2001**.

LA PAZ, BAJA CALIFORNIA SUR, ON THE **20TH** TWENTIETH DAY OF THE MONTH OF **DECEMBER** OF THE YEAR **2013** TWO THOUSAND THIRTEEN, I DEFINITELY AUTHORIZE THE PRESENT DEED.- **I ATTEST.**

OFFICIAL SEAL

ILLEGIBLE SIGNATURE

NOTARY STAMP

CADASTER STAMP

I had in sight the present public deed
No. 52,168 Volume No. 1084
Having taken note for the corresponding
legal purposes.
SAN JOSE DEL CABO, B.C.S. 01/21/2014

ATTENTIVELY

Illegible signature

ATTY. ENRIQUE P. NAVARRO BARAJAS

The Municipal Director of Cadaster in the Municipality of Los Cabos, B.C.S.

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

PUBLIC NOTARY THREE
ATTY. CARLOS ARAMBURO ROMERO
AND OF THE FEDERAL IMMOVABLE PATRIMONY

DOCUMENTS COVER SHEET ADDED TO THE FILE OF THE ADDENDA VOLUME 1084 PUBLIC DEED NUMBER 52,268
--

LETTER	DOCUMENT DESCRIPTION	NO. PAGES
"B"	LETTER NUMBER DMC/XI/96/2013 ISSUED BY THE MUNICIPAL OFFICE OF CADASTER	1
"C"	LETTER CR/039/PU/2013, FOLIO 803/2013 ISSUED BY THE MUNICIPAL OFFICE OF URBAN PLANNING	3
"D"	CERTIFICATE OF NO LIENS	1
"E"	PROJECT NARRATIVE	62

Municipal Cadaster Office

LETTER NUMBER: DMC/XI/96/2013

SUBJECT: The one indicated.

San José del Cabo, B.C.S, November 26th, 2013.

**COURT OF FIRST INSTANCE OF THE CIVIL
AND FAMILY BRANCH OF LOS CABOS JUDICIAL DISTRICT,
ATTENTION: C. JUAN FRANCISCO ARZATE VARGAS
(ANCILLARY OF ADMINISTRATION OF JUSTICE)
PRESENT.**

In reference to official letter **no CR / 039 / PU / 2013, folio 803/2013, dated November 14, 2013**, issued by the General Office of Urban Planning, Urban Development and Ecology, where the Property and Condominium Regime are authorized, called "**SAMPAGUITA**" with a **Surface Area of 10,119.72 M2, with Cadastral Code 401001113024**, located in lot 02, block 02, beach front section, in the tourist area of Development of San José del Cabo, in San José del Cabo, Municipality of Los Cabos, Baja California Sur.

In this regard, I would like to inform you that from the date of receipt of this document and within a period of no more than 30 business days, you must submit the protocol and the manifestation of the regime described above at this address. The assigned cadastral Codes are as detailed below:

VILLA	CADASTRAL CODE		
		7	401001113024-00V007
1	401001113024-00V001	8	401001113024-00V008
2	401001113024-00V002	9	401001113024-00V009
3	401001113024-00V003	10	401001113024-00V0010
4	401001113024-00V004	11	401001113024-00V0011
5	401001113024-00V005	12	401001113024-00V0012
6	401001113024-00V006	13	401001113024-00V0013
		14	401001113024-00V0014

Without any other particular, sending you cordial greeting, and at your disposition for any follow up.
attentively

The municipal director of cadaster.

Illegible signature

Atty. Enrique P. Navarro Barajas.

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

General Municipal Office

Urban Planning

"2013 CENTENNIAL YEAR OF THE BEGINNING OF THE MEXICAN REVOLUTION IN BAJA CALIFORNIA SUR"

LETTER: CR/039/PU/2013 FOLIO: 803/2013

SUBJECT: Authorization of the Condominium Property Regime.

San Jose del Cabo, BCS, November 14th, 2013

**"COURT OF FIRST INSTANCE OF THE CIVIL AND FAMILY BRANCH
OF THE JUDICIAL DISTRICT OF LOS CABOS"**

Attn.

C. Juan Francisco Arzate Vargas

(ANCILLARY OF THE ADMINISTRATION OF JUSTICE)

PRESENT.

THE UNDERSIGNED, IN OUR CAPACITY AS GENERAL DIRECTOR OF PLANNING AND URBAN DEVELOPMENT, **ARCH. ROBERTO FLORES RIVERA** AND THE MUNICIPAL DIRECTOR OF URBAN PLANNING **JESUS SALVADOR BELTRAN COTA** OF THE HONORABLE XI CITY HALL OF LOS CABOS, THROUGH THIS CHANNEL WE RESPECTFULLY ALLOW OURSELVES TO GIVE AN ANSWER BEING IN THE FOLLOWING TERMS:

In response to the request received at this address on October 31 of the current year through which to request the **Authorization of the Constitution of a Condominium Property Regime called "Sampaguita"** developed upon lot 02, block 02, beach front section, in the Tourist Area of Development of San José del Cabo , Baja California Sur, with a surface of 10,119.72 m2 and cadaster code 401-001-113-024.

Background:

- Final sentence dated January 30th, 2009 resolved and signed by C. Atty. Cesar Geronimo Chavez Rodriguez, Judge of First Instance of the Civil and Family Branch of the Judicial District of Los Cabos, residing in San Jose del Cabo, Baja California Sur, acting before Atty. Erendira Trinidad Sanchez Cota, Court Clerk.
- Proceeding of Sentencing Execution in which C Juan Francisco Arzate Vargas is designated as ancillary to the administration of justice for the purpose of executing the trial.
- Judicial Agreement promoted by C. Atty. Francisco Javier Troncoso Valle in order to terminate the present controversy.
- Public Deed no. 51,940 volume 1077 dated October 12, 2013 where the Notarization of the Subdivision Request is authorized under Official Letter No. SUBD/088/PU/2013 FOLIO 641/2013, dated August 30th, 2013.
- Letter of Proceeding of Sentencing Execution and Judicial Agreement presented by C. Atty. Armando Serrano Marin.
- Copy of C. Juan Francisco Arzate Vargas's identification.
- Certificate of No Property Tax debt of the property
- Certificate of No Liens of the property dated October 29, 2013.

Macro Location.

(images)

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

Municipal Office of
Urban Planning

"2013 CENTENNIAL YEAR OF THE BEGINNING OF THE MEXICAN REVOLUTION IN BAJA CALIFORNIA SUR"

LETTER: CR/039/PU/2013 FOLIO: 803/2013

SUBJECT: Authorization of the Condominium Property Regime.

Promoted Regime:

(Image)

Municipal Office of
Urban Planning

"2013 CENTENNIAL YEAR OF THE BEGINNING OF THE MEXICAN REVOLUTION IN BAJA CALIFORNIA SUR"

LETTER: CR/039/PU/2013 FOLIO: 803/2013

SUBJECT: Authorization of the Condominium Property Regime

Resolutive.

On the basis and compliance with the terms of Law and Regulations applicable and in force in the Municipality of Los Cabos. Project Narrative, Table of Undivided, Plans in UTM Measurements presented and Table of Undivided and Regulation: Urban Development Law for the State of BCS, Article 13, fraction X, articles 68, 69, 70, 71, 72, 73, 73 BIS, 74, 74 BIS, 75, 77, 77 BIS of CHAPTER III OF THE MERGER, SUBDIVISION, RELOCATION AND FRACTIONATING OF LAND and other related and applicable material, Subdivision Regulations for the State of BCS, Articles 4, 5, 6, 13, 14, 15, 16, 18, 21, 22, 23, 24, 25, 26 and other relatives applicable in material, Law on the Condominium Property Regime of Property of the State of Baja California Sur, Articles 4, 6, 17 and other related and applicable material, Law of Ecological Balance and Protection of the Environment of the State of BCS Decree 829... Title Second Chapter First Article 5 Fraction III... relative to the Structuring of the Ecological Ordinance and Fraction VII relative to... which to the letter says... "and, where appropriate, condition the granting of authorizations for land use or licenses for construction or operation", Ecological Zoning Plan for Urban and Tourist Development in the Municipality of Los Cabos, BCS. Published in the Official Bulletin of the State Government of B.C.S under Number 30 of Volume XXII in the City of La Paz dated August 31, 1995, according to decree number 1054 and Municipal Council Act number 49 of the Extraordinary Session of June 5, 1995 of the Honorable V City Council of Los Cabos and with certification of the Secretary General dated August 28, 1995, having as one of its objectives and to the letter says ... "to be a Planning instrument that guides the State and Municipal Governments in the tasks of authorizing, concession and licensing the use of land and the use of natural resources" and in accordance with the criteria used relative to the land uses applicable in the current and in force "Second Amendment of the Urban Development Master Plan San José del Cabo and Cabo San Lucas 2040" authorized under the certification of the Honorable Municipal Council number 287-XXXV-2013, dated February 23 April 2013 of the Ordinary Session number 35 held on April 23, 2013 and published in the Official Gazette dated May 6th, 2013 and current as of the date published under Volume XL Extraordinary, from the Official Gazette of the Government of Baja California Sur, registered before the Public Registry of Property and Commerce of the city of San José del Cabo, municipality of Los Cabos, Baja California Sur, under number 01, page 01, of volume 11 of section V, dated May 30, 2013 based on the provisions of the Strategic Level of Secondary Zoning (applicable pages 250 to 287, Compatibility Table of Land Use and plan with code PDU2040-ET-403 annex) according to its location and in congruence with the Layout (lots) and Plot (roadways) of the area through the analysis carried out with the Municipal Universal Transverse Mercator Coordinate System (in English Universal Transverse Mercator, UTM) which is the coordinate system based on the cartographic projection that this unit uses for the location of properties in the Municipal Cartography and Urban Development Plans, Partial Plans or Master Plans regarding their uses and vocation of soil; **THIS MUNICIPAL INSTANCE AUTHORIZES THE CONSTITUTION OF THE CONDOMINIUM PROPERTY REGIME DENOMINATED "SAMPAGUITA" requested according to: Surface Area, Measurements and Boundaries indicated in attached plans, Project Narrative, Table of Undivided and annexed regulations.** It is opportune to establish that this authorization does not accredit ownership or possession and any legal situation that may arise regarding your strictest responsibility. Likewise, you are informed that you must file and register such Authorization before the Offices of Cadaster land Public Registry of Property and Commerce where appropriate.

Likewise, you are informed that the Honorable City Council of Los Cabos reserves the right to modify the terms of the current authorization, at the time it considers that the conditions that gave rise to it have changed, under the response of its promoter.

Without any other particular for the moment, we remain at your orders.

ATTENTIVELY

GENERAL DIRECTOR OF URBAN PLANNING AND DEVELOPMENT

ARCH. ROBERTO FLORES RIVERA

Illegible Signature

MUNICIPAL DIRECTOR OF URBAN PLANNING

ING. JESUS SALVADOR BELTRAN COTA

Illegible Signature

With copies for Enrique P. Navarro Barajas- Director Of Municipal Cadaster- Present

With copies for Jose Angel Torres Grijalva- Director of Public Registry of Property and Commerce- Present

With copy for Archive

Illegible

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

H. XI CITY HALL OF LOS CABOS, BCS
Municipal Office of Public Registry of
Property and Commerce of Los Cabos

THE UNDERSIGNED ATTORNEY JOSE ANGEL TORRES GRIJALVA, DIRECTOR OF PUBLIC REGISTRY OF PROPERTY AND COMMERCE OF THIS CITY HALL OF LOS CABOS, BCS

CERTIFY: That the search was made corresponding to a period of ____**____ years prior to this date in the office and during that period it was found

FREE OF LIENS

Lot 2 block 2 Beach Front Section of the Tourist Area, of the destination, San José del Cabo B.C.S, Cadastral Code 401-001-113-024 with a surface area of 10,119.72M2 equivalent to 1-01-19. 72 Has.

And to the following measures and boundaries:

TO THE NORTH: In broken line of 36.53 meters 10.35 meters and 20.95 meters bordering with fraction A of lot 2 in 2 curve segments of 12.85 meters and 20.81 meters bordering with fraction A of lot 2 in a straight line of 3.02 meters bordering with fraction A from lot 2.

SOUTH: In broken line of 41.47 meters and 51.11 meters bordering the Gulf of California

TO THE EAST: In a straight line of 110.78 meters bordering the Beach Circuit and Lot 3

TO THE WEST: In a straight line of 112.83 meters bordering Lot 1

REGISTERED UNDER NUMBER 115 PAGE 115 VOLUME DLVI E.P SEC 1 DATED OCTOBER 25, 2013 IN FAVOR OF NACIONAL FINANCIERA S.N.C

FOR CERTIFICATE AND REQUEST FROM SERVIJUR SC, THIS CERTIFICATE IS ISSUED IN SAN JOSE DEL CABO, BAJA CALIFORNIA SUR, UNITED MEXICAN STATES, AT 10 AM ON OCTOBER 29, 2013, THE AMOUNT OF 421.00MN OF \$ 421.00 BILL HAS BEEN PAID BY EXPEDITION, AS OF IT WAS EXHIBITED IN TICKET 1169649

ATTY. JOSE ANGEL TORRES GRIJALVA

ROSA AMALIA VILLALOBOS TAPIZ.

(Public Registry Stamp)

ATTY. JOSE ANGEL TORRES GRIJALVA

Illegible Signature

ROSA AMALIA VILLALOBOS TAPIZ

CONDOMINIUM PROPERTY REGIME
"Sampaguita"

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
INDEX

- LOCATION
- GENERAL SHORING PLAN
- INDIVIDUAL PLANS OF PRIVATE UNITS AND NARRATIVES
- UNDIVIDED TABLE
- INTERNAL CONDOMINIUM REGULATIONS
- PROPERTY RECORDS

LOCATION

**GENERAL SHORING PLAN
(FOOTING)**

IMAGE

SHORING AREAS PLAN		
"SAMPAGUITA" DEVELOPMENT		
CONCEPT		M2 AREA
PRIVATE AREA	VILLA 1	139.51
PRIVATE AREA	VILLA 2	140.04
PRIVATE AREA	VILLA 3	112.13
PRIVATE AREA	VILLA 4	111.33
PRIVATE AREA	VILLA 5	113.60
PRIVATE AREA	VILLA 6	113.69
PRIVATE AREA	VILLA 7	113.58
PRIVATE AREA	VILLA 8	113.36
PRIVATE AREA	VILLA 9	114.06
PRIVATE AREA	VILLA 10	114.15
PRIVATE AREA	VILLA 11	113.78
PRIVATE AREA	VILLA 12	115.00
PRIVATE AREA	VILLA 13	140.04
PRIVATE AREA	VILLA 14	139.77
COMMON AREA	WALKWAYS	1,059.38
COMMON AREA	POOL	164.73
COMMON AREA	COURT	645.30
COMMON AREA	GARDENS	3,078.20
COMMON AREA	INTERNAL ROADWAY	1,796.65
COMMON AREA	SERVICE AREAS 1	104.44
COMMON AREA	SERVICE AREAS 2	39.01
COMMON AREA	CANAL 1	14.45
COMMON AREA	CANAL 2	9.86
COMMON AREA	ACCESS	45.63
COMMON AREA	BEACH COMMON AREA	1,200.00
COMMON AREA OF EXCLUSIVE USE	EXCLUSIVE VILLA 1	142.55
COMMON AREA OF EXCLUSIVE USE	EXCLUSIVE VILLA 14	125.48
AREA SUM		10,119.72
AREA OF LOT 2		10,119.72
DIFFERENCE		0.00

CONDOMINIUM DEVELOPMENT "SAMPAGUITA"

SHORING PLAN

CONDOMINIUM PROPERTY REGIME

INDIVIDUAL PRIVATE UNIT PLANS AND PROJECTS

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

VILLA 1

GROUND FLOOR = 139.51 M2

UPPER FLOOR = 45.96 M2

TOTAL BUILT AREA = 185.47 M2

It has a private area of 185.47m2 on two floors, consists of three bedrooms, 2 bathrooms, laundry room, kitchen, dining room, access, terraces and garage

With the following measures and boundaries:

Ground floor: 139.51 M2

To the Northeast 0.81m with common area and 5.88m with roadway

To the Southeast 21.56 m with common area for exclusive use villa 1

To the Southwest 6.69 m with common area

To the Northwest 15.72 m with villa 2 and 5.84m with common area

Upper floor: 45.96 M2

To the Northeast: 6.69m with empty lot

To the Southeast: 6.87m with empty lot

To the Southwest: 6.69m with empty lot

To the Northwest: 6.87 m with villa 2

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

VILLA 2

GROUND FLOOR = 140.04 M2

UPPER FLOOR = 46.17 M2

TOTAL BUILT AREA = 186.21 M2

It has a private area of 186.21m2 on two floors, consists of three bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage

With the following measures and boundaries:

Ground floor: 140.04 M2

To the Northeast 5.89m with roadways and 0.83 with common area

To the Southeast 5.84 m with common area and 15.72 with villa 1

To the Southwest 6.72 m with common area

To the Northwest 21.56 m with common area

Upper floor: 46.17 M2

To the Northeast: 6.72m with empty lot

To the Southeast: 6.87m with villa 1

To the Southwest: 6.72m with empty lot

To the Northwest: 6.87 m with empty lot

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

VILLA 3

GROUND FLOOR = 112.13 M2

UPPER FLOOR = 44.18 M2

TOTAL BUILT AREA = 156.31 M2

It has a private area of 156.31m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage

With the following measures and boundaries:

Ground floor: 112.13 M2

To the Northeast 3.62m with roadway and 3.10 with common area

To the Southeast 2.36 m with common area and 15.42 with common area

To the Southwest 6.72 m with common area

To the Northwest 17.78 m with villa 4

Upper floor: 44.18 M2

To the Northeast: 6.72m with empty lot

To the Southeast: 6.58m with empty lot

To the Southwest: 6.72m with empty lot

To the Northwest: 6.58m with villa 4

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

VILLA 4

GROUND FLOOR = 111.33 M2

UPPER FLOOR = 43.89 M2

TOTAL BUILT AREA = 155.22 M2

It has a private area of 155.22m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage

With the following measures and boundaries:

Ground floor: 111.33 M2

To the Northeast 3.10m with common area and 3.57m with roadway

To the Southeast 17.78m with villa 3

To the Southwest 6.68 m with common area

To the Northwest 15.41 m with common area and 2.36m with common area

Upper floor: 43.89 M2

To the Northeast: 6.67m with empty lot

To the Southeast: 6.58m with villa 3

To the Southwest: 6.68m with empty lot

To the Northwest: 6.58m with empty lot

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

VILLA 5

GROUND FLOOR = 113.60M2

UPPER FLOOR = 45.99 M2

TOTAL BUILT AREA = 159.59 M2

It has a private area of 159.59m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage

With the following measures and boundaries:

Ground floor: 113.60 M2

To the North 3.59m with roads and 3.10m with common area

To the East 2.34m with common area and 15.73m with common area

To the South 6.69m with common area

To the West 18.07m with villa 6

Upper floor: 45.99 M2

To the North 6.69m with empty lot

To the East: 6.88m with empty lot

To the South: 6.69m with empty lot

To the West: 6.87m with villa 6

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

VILLA 6

GROUND FLOOR = 113.69M²

UPPER FLOOR = 46.03 M²

TOTAL BUILT AREA = 159.72 M²

It has a private area of 159.72m² on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage

With the following measures and boundaries:

Ground floor: 113.69 M²

To the North 3.10m with common area and 3.59m with roadway

To the East 18.07 m with villa 5

To the South 6.70m with common area

To the West 2.34 m with common area and 15.73m with common area

Upper floor: 46.03M²

To the North 6.70m with empty lot

To the East: 6.88m with villa 5

To the South: 6.70m with empty lot

To the West: 6.88m with empty lot

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 7

GROUND FLOOR = 113.58 M2

PLANT. HIGH = 46.03 M2

TOTAL BUILT AREA = 159.61 M2

It has a private area of 159.61m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 113.58 M2

To the Northeast 2.35m with common area and 15.72m with common area.

To the Southeast 6.69m with common area,

To the Southwest 18.06m with Villa 8.

To the Northwest 3.59m with roadway and 3.10m with common area

Upper floor: 46.03 M2

To the Northeast 6.88m with empty lot.

To the Southeast 6.69m with empty lot.

To the Southwest 6.88m with Villa 8.

To the Northwest 6.69m with empty lot.

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 8

GROUND FLOOR = 113.36 M2

PLANT. HIGH = 45.92M2

TOTAL BUILT AREA = 159.28 M2

It has a private area of 59.28m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and Garage.

With the following measures and boundaries:

Ground Floor: 113.36 M2

To the Northeast 18.06m with villa 7

To the Southeast 6.67m with common area,

To the Southwest 15.72m with common area and 2.35m with common area

To the Northwest 3.08m with common area and 3.59 with roadway

Upper floor: 45.92M2

To the Northeast 6.88 m with villa 7

To the Southeast 6.67m with empty lot

To the Southwest 6.88m with empty lot

To the Northwest 6.67m with empty lot

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 9

GROUND FLOOR == 114.06 M2

HIGH FLOOR == 45.99 M2

TOTAL BUILT AREA = 160.05 M2

It has a private area of 160.05m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 114.06 M2

To the Northeast 2.38m with common area and 15.77m with common area,

To the Southeast 6.69m with common area.

To the Southwest 18.15m with Villa 10.

To the Northwest 3.59m with roadway and 3.10m with common area

Upper floor: 45.99 M2

To the Northeast 6.87m with empty lot.

To the Southeast 6.69m with empty lot.

To the Southwest 6.87m with Villa 10.

To the Northwest 6.69m with empty lot.

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 10

GROUND FLOOR = 114.15M2

HIGH FLOOR = 46.03 M2

TOTAL BUILT AREA = 160.18 M2

It has a private area of 160.18m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 114.15 M2

To the Northeast 18.15m with villa 9

To the Southeast 6.69m with common area.

To the Southwest 15.77m with common area and 2.38m with common area

To the Northwest 3.10m with common area and 3.59 with roadway

Upper floor: 46.03 M2

To the Northeast 6.87m with villa 9

To the Southeast 6.70m with empty lot.

To the Southwest 6.87m with empty lot.

To the Northwest 6.69m with empty lot.

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 11

GROUND FLOOR == 113.78M2

UPPER FLOOR == 45.62 M2

TOTAL BUILT AREA = 159.40 M2

It has a private area of 159.40m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 113.78 M2

To the Northeast 2.34m with common area and 15.89m with common area

To the Southeast 6.64m with common area.

To the Southwest 18.23m with villa 12

To the Northwest 3.53m with roadway and 3.11m with common area.

Upper floor: 45.62M2

To the Northeast 6.87m with empty lot.

To the Southeast 6.64m with empty lot.

To the Southwest 6.87m with villa 12

To the Northwest 6.64m with empty lot.

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 12

GROUND FLOOR == 115.00M2

HIGH FLOOR == 46.06 M2

TOTAL BUILT AREA = 161.06 M2

It has a private area of 161.06m2 on two floors, consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 115.00M2

To the Northeast 18.23m with villa 11

To the Southeast 6.70m with common area.

To the Southwest 15.89m with common area and 2.34m with common area

To the Northwest 3.09m with common area and 3.62m with roadway

Upper floor: 46.06 M2

To the Northeast 6.87m with villa 11

To the Southeast 6.70m with empty lot.

To the Southwest 6.87m with empty lot.

To the Northwest 6.70m with empty lot.

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 13

GROUND FLOOR == 140.04M2

HIGH FLOOR == 46.27 M2

TOTAL BUILT AREA = 186.31 M2

It has a private area of 186.31m2 on two floors, it consists of two bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 140.04 M2

To the North 21.59m with common area

To the East 6.72m with common area.

To the South 15.76m with villa 14 and 5.84m with common area

To the West 0.87m with common area and 5.85m with roadway.

Upper Floor: 46.27 M2

To the North 6.89m with empty lot.

To the East 6.72m with empty lot.

To the South 6.89m with villa 14

To the West 6.72m with empty lot.

CONDOMINIUM PROPERTY REGIME
"Sampaguita"
PROJECT NARRATIVE
PRIVATE AREAS

Villa 14

GROUND FLOOR == 139.77M2

HIGH FLOOR == 46.06 M2

TOTAL BUILT AREA = 185.83 M2

It has a private area of 185.83m2 on two floors, it consists of three bedrooms, 2 bathrooms, laundry center, kitchen, dining room, access, terraces and garage.

With the following measures and boundaries:

Ground Floor: 139.77M2

To the North 5.83 m with common area and 15.76m with Villa 13

To the East 6.69m with common area.

To the South 21.59m with private area Villa 14

To the West 5.89m with roadway and 0.80m with common area

Upper Floor: 46.06 M2

To the North 6.89m with Villa 13.

To the East 6.69m with empty lot.

To the South 6.89 with empty lot

To the West 6.69m with empty lot.

UNDIVIDED TABLE

CONDOMINIUM REGIME DEVELOPMENT "SAMPAGUITA"

TABLE OF UNDIVIDED

CONCEPT	PRIVATE AREA FOOTING	INTERNAL UNDIVIDED	PRIVATE AREA BOTTOM FLOOR	CONSTRUCTED PRIVATE AREA TOP FLOOR	TOTAL CONSTRUCTED PRIVATE AREA	EXCLUSIVE USE PRIVATE AREA (TERRACE)	COMMON AREAS (GARDENS, CANALS, WALKWAYS, COURT, ROADWAYS, BEACH ACCESS, POOL AND SERVICE AREAS)
	M2	%	M2	M2	M2	M2	M2
PRIVATE AREA VILLA 1	139.51	0.08235	139.51	45.96	185.47	142.55	671.81
PRIVATE AREA VILLA 2	140.04	0.08267	140.04	46.17	186.21	0.00	674.36
PRIVATE AREA VILLA 3	112.13	0.06619	112.13	44.18	155.31	0.00	539.96
PRIVATE AREA VILLA 4	111.33	0.06572	111.33	43.89	155.22	0.00	536.11
PRIVATE AREA VILLA 5	113.60	0.06706	113.60	45.99	159.59	0.00	547.04
PRIVATE AREA VILLA 6	113.69	0.06711	113.69	46.03	159.72	0.00	547.47
PRIVATE AREA VILLA 7	113.58	0.06705	113.58	46.03	159.61	0.00	546.94
PRIVATE AREA VILLA 8	113.36	0.06692	113.36	45.92	159.28	0.00	545.89
PRIVATE AREA VILLA 9	114.06	0.06733	114.06	45.99	150.05	0.00	549.25
PRIVATE AREA VILLA 10	114.15	0.06738	114.15	46.03	160.18	0.00	549.69
PRIVATE AREA VILLA 11	113.78	0.06716	113.78	45.62	159.40	0.00	547.91
PRIVATE AREA VILLA 12	115.00	0.06789	115.00	46.06	161.06	0.00	553.78
PRIVATE AREA VILLA 13	140.04	0.08267	140.04	46.27	186.31	0.00	674.35
PRIVATE AREA VILLA 14	139.77	0.08251	139.77	46.06	185.83	125.48	673.05
SUM	1,694.04	1.00000	1,694.04	640.20	2,334.24	288.03	8,157.65

JESSICA ANN OLSEN GATIN

Oficio No. 372/2005

Perito Traductor e Interprete

Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

CONDOMINIUM REGIME DEVELOPMENT "SAMPAGUITA"

TABLE OF UNDIVIDED

CONCEPT		PRIVATE AREA FOOTING	INTERNAL UNDIVIDED	PRIVATE AREA BOTTOM FLOOR	CONSTRUCTED PRIVATE AREA TOP FLOOR	TOTAL CONSTRUCTED PRIVATE AREA	EXCLUSIVE USE PRIVATE AREA (TERRACE)	COMMON AREAS (GARDENS, CANALS, WALKWAYS, COURT, ROADWAYS, BEACH ACCESS, POOL AND SERVICE AREAS)
		M2	%	M2	M2	M2	M2	M2
PRIVATE AREA	VILLA 1	139.51	0.08235	139.51	45.96	185.47	142.55	671.81
PRIVATE AREA	VILLA 2	140.04	0.08267	140.04	46.17	186.21	0.00	674.36
PRIVATE AREA	VILLA 3	112.13	0.06619	112.13	44.18	155.31	0.00	539.96
PRIVATE AREA	VILLA 4	111.33	0.06572	111.33	43.89	155.22	0.00	536.11
PRIVATE AREA	VILLA 5	113.60	0.06706	113.60	45.99	159.59	0.00	547.04
PRIVATE AREA	VILLA 6	113.69	0.06711	113.69	46.03	159.72	0.00	547.47
PRIVATE AREA	VILLA 7	113.58	0.06705	113.58	46.03	159.61	0.00	546.94
PRIVATE AREA	VILLA 8	113.36	0.06692	113.36	45.92	159.28	0.00	545.89
PRIVATE AREA	VILLA 9	114.06	0.06733	114.06	45.99	150.05	0.00	549.25
PRIVATE AREA	VILLA 10	114.15	0.06738	114.15	46.03	160.18	0.00	549.69
PRIVATE AREA	VILLA 11	113.78	0.06716	113.78	45.62	159.40	0.00	547.91
PRIVATE AREA	VILLA 12	115.00	0.06789	115.00	46.06	161.06	0.00	553.78
PRIVATE AREA	VILLA 13	140.04	0.08267	140.04	46.27	186.31	0.00	674.35
PRIVATE AREA	VILLA 14	139.77	0.08251	139.77	46.06	185.83	125.48	673.05
SUM		1,694.04	1.00000	1,694.04	640.20	2,334.24	288.03	8,157.65

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Tribunal Superior de Justicia

Poder Judicial del Estado de Baja California Sur

INTERNAL CONDOMINIUM REGULATION

REGULATIONS OF THE CONDOMINIUM PROPERTY REGIME
"SAMPAGUITA"

April 2013
Prepared by: M.D.

JESSICA ANN OLSEN GATIN
Oficio No. 372/2005
Perito Traductor e Interprete
Tribunal Superior de Justicia
Poder Judicial del Estado de Baja California Sur

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REGULATION OF THE CONDOMINIUM PROPERTY REGIME

"SAMPAGUITA"

ARTICLE 1

PREAMBLE

This Regulation is established according to articles 1,4,6, 34 and all others regarding Condominium Property Law in force in the state of Baja California Sur, Mexico. All of the owners and occupants shall be subject to this regulation and shall be responsible for the damages or loss that may be caused to the common goods of the Condominium complex. (Statute of change- GA-Nov 22 1999).

DEFINITIONS

To the effects of this Regulation, the terms used shall have the following meanings:

(a) "THE DEVELOPMENT" Shall be understood as all the immovable property in Addenda "A" of the Statement of Agreements, Conditions and Restriction establishing a Master Property Plan for "VILLAS Sampaguita" (Addenda "A") (Statute of change- GA-Nov 22 1999).

(b) "CONDOMINIUM" OR "CONDOMINIUM COMPLEX" Shall be understood as all the property described in the "Deed" (Specifically described in the Trust) of which the owner must acquire the right as beneficiary under Trust Contract, including a Private Property Unit, a percentage of pro indiviso of the common areas and common services related to the same:

(c) "COMMON AREA" shall be considered as part of the development, however not a part of the Villa, as described in the Master Plan, stated within the property limits described in Addenda "A".

(d) "VILLA" OR "PRIVATE PROPERTY UNIT" Shall be understood as a numbered part of the condominium complex with limits established in the Master Plan. Each Villa shall consist of a portion of each condominium property that is not common property with other owners. Each Villa is assigned as such in the "topographic plan" including the Balcony according to that stated in the "Topographic Plan".

(e) "OWNER" OR "OWNERS" Shall be understood as the Beneficiary or Beneficiaries of the Trust, including any person, persons, trust, patrimony, partnership, corporation or other entity, that presents the declaration regarding each owner. Each owner must be a member of the Condominium Association.

(f) "MEMBER" OR "MEMBERS" Refers to a "owner" or "owners" as defined in section (e) of the present article.

(g) "HOMEOWNERS ASSOCIATION" refers to the Homeowners Association of Sampaguita, a homeowners association in common with legal character constituted by members that shall exclusively be the owners of the Condominium development.

(h) "MASTER PLAN" shall be understood as the entire development concept, and the establishment of every Private Property Units, the common areas, streets, parking areas, common services, etc duly registered before the government authorities and associations according to Mexican laws.

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(i) "PARKING AREAS" shall be understood as a part of the Common Area assigned as such in the Master Plan and established in the Deed.

(j) "STORAGE UNIT" shall be understood as a percentage of the Common Area assigned as such in the Master Plan and therefore established in the Deed.

(k) "ADMINISTRATOR" shall be understood as the executive and administrative organ of the development, which may be an individual, a civil association or a board of directors which shall be chosen according to Article IV.

(l) "NORMS OF THE ASSOCIATION" shall be understood as the approved norms of the Board of Directors, according to these Regulations and Incorporation Acts.

(m) "ADDENDA" shall be understood as an appendix tagged as such attached to this Regulation which must be incorporated to this Regulation in whole.

(n) "TRUST" (see article 1(b) "Condominium" (Statute of change- GA-Nov 22 1999).

(o) "RESERVE FUND" Shall refer to a special fund charged to the owners to finance one or various improvement projects, which cost shall exceed ten percent (10%) of the ordinary annual budget of the Homeowners Association (Statute of change- GA-Nov 22 1999).

(p) "HOMEOWNERS ASSOCIATION MEETING" Shall be understood as an official meeting of homeowners, which is the maximum organ of government according to the Condominium Property Law.

(q) "SPECIAL OR EXTRAORDINARY FEES" are fees that must be paid by the owners for the preservation and maintenance of common areas and common areas o exclusive use of the Condominium.

(r) "MAINTENANCE FEES" are ordinary and extraordinary fees that the owners must pay for the preservation and maintenance of Common Areas in general.

(s) "REGULATION" AND "SAMPAGUITA REGULATION" are the norms contained in this document summarized and published in each Villa. Norms established for its administration and the autonomous government of the Condominium.

"BASIS AND IMPLEMENTATION OF REGULATION"

This regulation is established based on article 951 of the Civil Code in referral to the Condominium Property Regime Law, in force in the state of Baja California Sur, Mexico.

This regulation is obligatory for all owners and persons that for any reason are occupying any of the units of Private Property.

In case of lease, the dispositions contained in this regulation, must respectively be invariably included the lease contract.

ARTICLE II

RIGHTS TO VOTE IN THE ASSOCIATION

The owners must act and make decisions regarding the complex through a Meeting. Such Meeting shall be organized according to Mexican Laws regarding the obligations and duties conferred in the Law and its current norms and rules.

In case that a Villa or Private Property Unit belongs to two or more persons or a corporation, these must assign a representative. In contrary case, the person whose name appears in first place in the official property document shall be considered as a representative.

To have a right to participate in the Homeowners Meeting, the owners must be up to date in maintenance fee payments and special fees, to have the same current receipt issued and be owner of a Villa or a private property unit, dully registered. During the Meeting the vote issued for each Homeowner shall represent the undivided percentage of the Villa regarding the total value of the Development as established in the statutes of incorporation of Condominium, being understood that the sum of all the Villas and Lots (14 in total) represent 100% (one hundred percent) of the Development.

Proxy.- any Owner may participate in homeowners meetings and vote in person o through a Proxy that may be another Owner or a family member of an Owner or a third party that must be named as such through a Power of Attorney l writing or a simple power of attorney which shall be delivered to the Board of Directors (Statute of change- GA-Nov 22 1999)

LIMITATIONS OF PROXY

According to the legal dispositions, no more than 35% of the Owners may be represented through a Power of Attorney (Statute of change- GA-Nov 22 1999, Motion #7).

The simple power of attorney or powers of attorney that are granted by the Owners in favor of its representatives must continue to be valid and in effect unless such power of attorney (i) be revoked by the same Owner who granted it, previous to the issuance of the vote by virtue that the power of attorney was granted, delivered in writing to the Board of Directors establishing that the Power of Attorney granted is revoked by another Power of Attorney granted by such Owner; (ii) is previous to the issuance of vote that protects the Power of Attorney, the Board of Director receives a notification in writing of the death or incapacity of the grantor, however taking into account that no Power of Attorney shall be valid after 11 months from the date of the Power of Attorney, unless it is established contrary to such Power OF Attorney.

When the registry more than one Owner exists any of these persons may participate in the Homeowners Meeting, and among them may issue votes to whom have the right in proportion to those that they themselves decide; but in no case may the grant more votes than those that a single Owner of the Development may have the right to issue.

ARTICLE III

HOMEOWNERS MEETING (MEETING)

Insert 1. Meeting, Call and Quorum

All the Ordinary and Extraordinary Meetings require previous call. The presence in any Ordinary and/or Extraordinary where the Owners represent 50% (fifty percent) of the total votes of the Condominium Regime shall be considered with an existing Quorum for which it shall be legally installed on First Call. On a second call the Assembly may be legally constituted with the number of present Owners. At a lack of Quorum in an Assembly, the majority present in person represented by his/her Proxy may postpone the time of the Meeting, but may not resolve any issue. The Owners that are present at a duly called Meeting and installed where there is a Quorum may continue with the examination of subjects until the Session is lifted, no matter the number of Owners are absent in order to not reach the Quorum, if each decision (except if the session is lifted) is approved by at least the majority of the Owners that constitute the Quorum.

Any decision that is taken at any Ordinary or Extraordinary Homeowners Meeting may be taken without a call to Meeting and without previous call if votes are in writing of a number of Owners that represents 50% (fifty percent) of the total of Condominium votes at least the same as the Quorum of a Homeowners Meeting. All these votes in writing must be filed by the secretary of the Homeowners Association and the Acts of the Association preserved. All the requests of voters ballots must be sent to the Owners by the secretary 30 days before the response date and such ballots must indicate the date on which the ballots must be returned for their count.

Insert 2. Annual Meeting (Ordinary Meeting)

All the General Ordinary Meetings must be carried out on the second Tuesday of the month of November (Statute of change- GA-Nov 22 1999, Motion #22).

The Ordinary Meetings of the Homeowners Association must be carried out at least once a year on the date and place determined by the Board of Directors taken into account that the date of the Meeting must be at least 30 days before the term of the tax year; such meetings must be carried out at a place near Villas Sampaguita (Modification of the Law GA- 22 Nov 1999).

Insert 3. Extraordinary Meetings (Special Meetings)

Ordinary Meetings are those that are called to deal with common matters and are off list of Extraordinaries. The Extraordinary Meetings shall include:

Extraordinary Meetings are those that are called to deal with the following matters:

A).- Modify the general destination of the Condominium or the final destination of any Private Property Unit.

B).- Modify the percentages that the Private Property Units represent, regarding the total value of the Condominium.

C).- Condominium extinction

D).- Execution of voluntary work in General Common Areas and/or Exclusive Use Common Areas or the common goods and installations that are interpreted to a better aspect and more commodity and work that increase the value of the Condominium.

E).- Modification of the present Regulation

F).- Require a Homeowner to sell in public auction, when the obligations that are derived from this Regulation are not fulfilled.

G).- Carry out the necessary work on the Condominium when this is destroyed or damaged in whole or is affected in three quarter parts of its value, as consequence of disasters that are not covered by any insurance.

An Extraordinary Meeting may be called at any moment in order to assist matters that, by the terms of this Regulation, require the approval of owners, or for any other purpose considered of importance. Such meetings shall be called by the majority of the members of the Board of Directors with previous written notification, delivered in a period of no less than ten (10) and no more than (90) days previous to the date established. Such call must contain the order of the day as well as the date, time and place where it shall take place. The extraordinary meetings shall be carried out in the Development or in any other place that is considered convenient.

ARTICLE IV

ELECTION AND PROCEDURES OF THE BOARD (BOARD OF DIRECTORS)

Insert 1. Annual Election

“In each Homeowners Meeting the members of the Board or Directors shall be elected for the coming year, formed by at least three (3) owners or direct family members of the owners, the Chairman, the Treasurer and the Secretary.”

Insert 2. Vote

Each Villa has a vote. In case that a Private Property Unit or Villa, belongs to two or more persons or a legal entity, these must assign a common representative. For each position of Chairman, Secretary or Treasurer, the candidate that receives the most number of votes, shall be considered elected. Any owner (present or represented) may be nominated to form part of the Board of Directors. The elect owner must be up to date in the payment of his/her fees (Change Statute- Article IV. Insert 3, the GA 08 November 2005).

Insert 3. Term

Each member of the Board of Directors shall exercise his/her functions for a minimum period of two (2) years with the elected Chairman for a respective period of the first year and the elected Treasurer and Secretary for their respective periods the following year (Statute change- GA 23 November 1999)

In case that the Previous Board of Directors elected in November do not assume their responsibility immediately or leaves matters with resolute or inconclusive, at the end of the natural year, shall be resolved for the newly elected Board of Directors, as of the First of January of the coming year.

Insert 4. Resignation and Removal

Any member may resign from the Board of Directors at any moment giving previous notification in writing, any member may be removed as member of the Board of Directors by vote of the owners, always and when the Board of Directors is not dismissed by the members vote of the Homeowners Association no member of the Board of Directors shall be dismissed before the expiration of his/her mandate, if the votes against the elimination were sufficient to choose the member of the Board of Directors, if they were to collectively vote in an election in which the same total number of votes were issued and the total number of members of the Board authorized at the moment of the most recent election were subsequently elected.

The owners must fill any vacancy created by the dismissal of a member of the Board, by means of the carrying out of an election according to Article IV, Insert 3 in the meeting in which the vacancy was created. The recent elected member shall fulfill the functions of the previous member.

Insert 5. Vacancies.

Substitute the word "Governor" for "Director" (Statutes change-GA 22 November 1999) A vacancy or vacancies in the Board of Directors shall be understood that it exists upon the presence of the following: (i) the death, resignation or destitution of any director; (ii) the resolution of the vacancy of the Board of Directors of any member declared demented by a judge order or condemned by a felony; (iii) the vote of a majority of the members to eliminate a member from the Board; (iv) the increase of the authorized number of members of the Board of Directors, or (v) the lack of quorum at any Homeowners meeting in which any member of the Board of Directors must be chosen.

The vacancies in the Board of Directors shall be filled by election of the majority of votes obtained in a meeting duly called for such effect.

No Chairman may be removed from his/her charge before concluding his/her term.

The vacancies created for the dismissal shall be filled by election of the owners as specified in Article IV, Insert 6 of this Regulation.

Insert 6. Sessions of the Board of Directors

The Sessions of the board of directors shall be considered legally installed when the majority of the members of the board of directors are present. The resolutions of the Board of Directors shall be valid when taken as a majority of votes of the members of the Board of Directors presents at the session. The acts of the sessions of the Board of Directors must consist in writing and shall be signed by all the attending members.

The resolutions adopted out of the session of the Board of Directors unanimously by its members shall have for all legal effects, the same validity as if they had been adapted in session of the Board of Directors, as long as they are confirmed in writing and are signed by the totality of the members of the Board of Directors.

Insert 7.- Ex Chairman of Service

The Ex Chairman of Service "WHEREAS" the previous Ex Chairman of the Board of Directors have vast information and experiences that may be shared with the Owners and the administrator, it is suggested that the general Meeting establish an Ex Chairman of Service assigned by the ex chairman, who may bring his/her knowledge and experience to be included in particular matters and concerns. (GA-Nov 8 2005. Motion #19)

ARTICLE V

POWERS AND OBLIGATIONS OF THE ADMINISTRATOR

The figure of the Administrator of the Condominium Regime may accrue upon an individual, a civil association or a Board of Directors integrated by the members that the meeting assigns. Currently the Condominium Regime has a Board of Directors, which in benefit of the Owners must fulfill the dispositions of the Regulation. Norms and Rules and exercise them at discretion when needed, carry out the functions here imposed and shall acquire and pay for the expenses not included in the established fees such as:

Insert 1. Public Services

Water, drainage and sewage services, cleaning and waste disposal, electrical energy, telephone, gas, private security and other necessary services of the General Common Areas and Exclusive Use Common Areas, at the extent that these do not correspond or be charged to the Private Property Units.

Insert 2. High Risk Insurance

The full coverage insurance policy against fire, explosion, earthquakes, hurricanes, floods, theft, vandalism, civil responsibility and any other risk as well as damages to the building, that shall cover the cost of replacement of the insured goods. Such policy(ies) must provide a backup payment upon the losses in favor of the mortgage creditor or mortgage debtor of each condominium, in such case.

Insert 3. Fidelity Bond.

If the Board of Directors considers convenient or if it is a requirement of a mortgage, an annual fidelity bond shall be required naming the Administrator or any other person that may be assigned by the Administrator (or whom ever is responsible of managing the funds of the homeowners association) and the owner or the homeowners association as joint debtors for an amount at least the same as one hundred and fifty percent (150%) of the total amount estimated by the ordinary annual Fees according to that established in ARTICLE VII of the regulation, including the reserves.

Such fidelity bonds must contain the exemption and exclusion clauses of any defense based on the definition of “employee” or similar expression, or persons that serve without retribution, and such bonds must establish that they may not be substantially canceled or modified (including the cancelation by lack of payment of the premium) without the existence of at least thirty days in advance written notice for each and every one of the names here insured, including the mortgage creditors and their service providers.

Insert 4. Errors and Omissions Backup

If the Board of Directors considers a “Errors and Omissions Backup” convenient, which protects the Board of Directors may be promulgated.

Insert 5. Common Area and Common Area Maintenance

Exterior (meaning outside the Villas) paint, repair and maintenance of all the gardens of the common area, paint, maintenance and repair of the balconies, in the same manner the furniture and tools used for the Common Area that the Board of Directors shall deem necessary and adequate. The Board of Directors shall have the exclusive right and obligation of acquiring the same, except the interior of the Villa (excluding the balcony) which shall be painted and repaired by the owner of them, such expenses shall be at the expense of the owner. The duty of the Board of Directors to maintain the common space in their charge is limited by that disposed in Article VI of the present document. The lateral gardens adjacent to Villas 1 and 14 may be used by the owners of such units for their personal enjoyment. No permanent

structure may be built in these areas without the previous approval of the Board of Directors. The request must be presented in writing before the Board of Directors for its approval.

Insert 6. Other Obligations of the Board of Directors

The cost of any other material, equipment, furniture, labor, services, maintenance, repairs, structural modifications, insurances, taxes or liens that the Board of Directors require to guarantee or pay according to the terms of this Regulation or by law or in their opinion, consider to be necessary or adequate for the functioning of the Complex provided to any Villa in particular, shall be a Special fee that must be charged and covered respectively by the owners of each Villa.

Insert 7. No Lien

Any amount necessary to release any foreclosure or lien totally or partially imposed against the property that may generate a lien against the common area and not only against the interests of certain owners in particular, shall charge a special fee to such owner; in the assumption that one or more owners are responsible for such lien, shall be jointly and separately responsible for the expenses incurred upon by the Board of Directors by virtue that such lien or liens that must be covered by a special fee against such owner(s).

Insert 8. Villa Maintenance

The maintenance and repair of any Villa except that disposed in this document, if such maintenance and repair is considered reasonably necessary, upon judgement of the Board of Directors to protect the common area or to preserve the appearance and value of the development and the owner(s) of such Villa refuses after the notification in writing to repair that stated by the Board of Directors, the Board must charge the owner of such Villa a tax for repair expenses. There shall be a notification and an audition prior to any repair of any Villa carried out by the council.

Insert 9. Powers of the Board of Directors

The Board of Directors shall have enunciatively yet not limited manner of the following faculties, which must be exercised together with the members that represent the majority of the Board of Directors:

I.- General Power for lawsuits and collections with all the general faculties and Exclusive Use Common Areas which require a special clause according to law, according to the first paragraph of Article 2468 (two thousand four hundred and sixty eight) of the Civil Code of the State of Baja California Sur, including an enunciative yet not limited title, a power to present, process and desist from whits of amparo, compromise and submit to arbitration, articulate and resolve positions, recuse judges, receive payments and represent all the Homeowners in each of the common matters related with the Condominium , before all type of authority and courts.

II.- General Power to administer goods according with the second paragraph of Article 2468 (two thousand four hundred and sixty eight) of the Civil Code of the State of Baja California Sur.

III.- The Administration of the Condominium may totally or partially substitute the powers and revoke the substitutions that may have been carried out, but in all cases preserve its general exercise of mandate.

IV.- To open, close, manage and administer bank accounts and assign the authorized signatures in such accounts.

V.- Power to delegate powers to committees, civil servants or employees of the Condominium Regime and/or Homeowners Association.

VI.- Power to assign and revoke civil servants as considered convenient, establishing his/her faculties, obligations and remunerations, as appropriate.

VII.- Power to grant general or special powers of attorney, reserving the right to exercise such powers, as well as to revoke the powers of attorney granted by the Meeting.

VIII.- Power to call Ordinary and Extraordinary Meetings and sign and obtain the execution of this Regulation.

IX.-To formulate and execute support regulations for the present Regulation.

X.- To initiate and exercise disciplinary procedures against the owners for lack of Fees payments, for violations of the dispositions of this Regulation, acts and restrictions. The Board of Directors may impose an economic sanction or temporarily suspend the owners rights as member of the Homeowners Association or another adequate disciplinary measure for the breach of such legal instruments as long as, previous to the imposition of the disciplinary measure, the notification procedures and hearing satisfies the minimal requirements of the present Regulation and of the Condominium Property Regime Law for the state of Baja California Sur.

Insert 10. Rules of the Association.

The rules of the Association must regulate matters that the Homeowners Association considers appropriate, yet no limited to, the use and enjoyment of the Villas, common area and its installations as long as, they do not discriminate other owners, except as expressly indicated in this Regulation or statutorily.

The procedure for the adoption and application of the Rules of the Association shall be those established in the Acts.

Limitations of power of the Board of Directors.

Insert 11. The powers of the Board of Directors listed in the previous section shall be limited in which the Council shall not have authority to pay or acquire out of the fees, sums and improvements to the capital (others that are not with the purpose of replacing portions of common areas) subject to all the dispositions of this regulation.

Insert 12. Exclusive Faculties of the Board of Directors

The Board of Directors shall have the exclusive right and the obligation to hire all the goods, services and insurances and pay them with the Fees, except expressly determined otherwise by the Meeting.

ARTICLE VI

OWNERS OBLIGATIONS

By exception of the parts established by the council, each Owner must maintain and repair his/her Villa, at owners expense, preserving it in good condition. Each Owner must be responsible before the Board of Directors (and my establish a special fee) for any expense carried out, Board of Director for maintenance of any portion of the Condominium that is required by abuse, misuse, negligent act or omission of the Owner, being normal wear and deterioration, however, in the understanding that such maintenance or repair of a Villa may noy be carried out by the Homeowners Association without providing the Owner with a written notification and offer the opportunity to be heard by the Administration, unless un emergency requires immediate action to safeguard human lives or property. All the air conditioning system repairs are responsibility of the Owners.

ARTICLE VII

AGREEMENT FOR FEES

Insert 1. Creation of Lien and Personal Fees Obligations

Statement for each Owner of a Condominium for himself/herself within the Development, through la acceptance of a will or another type of communication, however this must be or not explicit in such will or communication, and shall be in accordance with paying the Homeowners Association:

- a) Ordinary Fees
- b) Reconstruction Fees
- c) Execution Fees

All these fees must be set, established, imposed and charged according to the following. The fees together with the corresponding interests and the collection costs, must be charged to the Condominium or Villa and must continue being a lien upon the Condominium or Villa against who carries out the Evaluation. Each Fee together with the corresponding cost and interest must also be an obligation of the person, entity or company assigned by the Owner at the moment in which such fee, or any part of it, has expired,

obligating its heirs or successors, the personal obligation shall not pass to his/her successors in the property title at least the expressly assume them.

Insert 2. Ordinary Fees

The Ordinary Fees, shall be determined by the meeting. The Fees shall be determined in function of the percentage of pro indiviso of each Villa// Private Property Unit, the amount to be paid and the date of payment of such charge must be determined by the Board of Directors after issuing the rightful considerations to the real costs budgets and estimated costs of the concepts considered in such fee.

During the Ordinary Annual Meeting, that must take place at least 30 days prior to the end of the tax year, the Board of Directors must present the Owners with a budget for the following period and must establish the dates and amounts of the Extraordinary Fees for each Condominium corresponding to such tax year. (Modification to the Law GA- 20 Nov 1998).

The breach by the Board of Directors to establish the Extraordinary Fees on the date established must be construed as a resignation to any increase in the corresponding Fee, previous year must be carried out for the following year (subject to an increase through the vote of fifty one percent (51%) of the Owners. The extraordinary fees may not be greater than twenty percent (20%) per Condominium, upon Ordinary Evaluation of the previous tax year, unless it has a previous vote or written consent of fifty one percent (51%) of the Owners. Written notification of the Ordinary Fees, with a copy of the results report (budget) for the following tax year, must be sent to each involved Owner at least thirty (30) days prior to the beginning of the tax year. Each Owner must as of that moment, pay the Homeowners Association their Ordinary Fee under the exhibitions established by the Board of Directors. Written notification of any other Fee must be sent with at least thirty (30) days of anticipation to the date of payment.

In such case that the Board of Directors determines at any moment that the Ordinary Fee considered for the following tax year is or shall be insufficient to carry out all the expenses due to the estimated amounts of such insufficiencies, the Board of Directors shall establish an supplementary estimate of the total of applicable expenses and shall review and adjust the amount of the Ordinary Estimate for each Owner responsible for such Fees. Such Fees should not complement any tax period in more than five percent (5%) of the total budget for that year for each Condominium, unless previous to such additional increase was obtained by means of vote or by the written approval of fifty one percent (51%) of the owners, excluding the Declarant. Such supplements must be made effective with expiration and payable according to what is set by the Board of Directors.

Insert 3. Defaulting Accounts

The Owner who does not pay his/her fees on time shall be charged an interest upon the unpaid amount at a rate of \$250 USD for each month or part of the month that the payment is not made after thirty (30) days prior to the payment day. The owner must also be subject to any other form of censorship that the Board of Directors deems appropriate, including the publication of delay in payment to everyone of the Owners, applying a lien on the property in question and restricting one or more of the public services. (Modification to the Law- GA- Nov 20 1998).

ARTICLE VIII

REPRESENTATION OF THE SAMPAGUITA PROPERTY. ON SITE ADMINISTRATOR

The Board of Directors may delegate any of its rights, powers and functions to any person or company to act as On Site Administrator. The following powers may NOT be delegated to the Administrator:

- a) Impose fines, carryout hearings or impose disciplinary measures;
- b) Provide notification and a hearing before collecting the extraordinary fees
- c) Present a lawsuit, register a claim for right of foreclosure by breach of payment of fees.

Any assignment by the Board of Directors to the Administrator of the site must be revoked by the Board of Directors to stop it from being carried out.

The members of the Board of Directors should not be responsible beyond the insurance coverage provided by the Homeowners Association for any omission or inappropriate exercise of the Administrator of any delegated right, power or function.

Insert 1.- The duties and obligations of the on site Administrator shall be:

A) Repair, review, maintain, monitor the General Common Areas, Exclusive Use Common Areas and other goods, such as installations, common services, as well as the exterior part of the Private Property Units.

B) Carryout all the administrative, repair, conservation and reconstruction acts of the General Common Areas and Exclusive Use Common Areas. As well as the installations and common use services and repair, preservation acts, as in such case the reconstruction of Private Property Units, as well as carryout the necessary work to maintain such installations, the Condominium in good preservation state, in conditions where the services function normally and efficiently. Efficient communication with the Council about these matters is considered essential.

C) Monitor the fulfilment of the resolutions of the Meeting and the dispositions of this Regulation of the Condominium.

D) Act as legal representative of the Homeowners regarding common matters of the Condominium, in the subject of administrative, appearances and collections acts. For the effects of this insert (D) the Administrator shall have the following faculties:

- a) care for and maintain order in the Condominium, as well as to inform the authorities.

- b) Carryout the Minute Book of the Meetings and the surveillance committee, the accounting books and annually present an audited financial statement to the Meeting and distribute a quarterly statement to the Homeowners, individually.
- c) Carryout all the expenses to which this Regulation refers and collect the corresponding proof. For control effects, the payments must be made by check, except when it is for amounts that due to the amount it is not observed to require this procedure.
- d) Acquire the necessary material for maintenance, repair and replacement of the General Common Areas and the Exclusive Use Common Areas.
- e) carryout acts and enter into necessary or convenient contracts for the performance of his/her functions. Work that exceeds \$1,000 US Dollars require three estimates and the selection of the contractor shall be consulted with the Board of Directors.
- f) Present the Meeting with annual estimates among others for the determination of General Fees and/or Special Fees for effects of Articles 28, 29 and 30 of this Regulation.
- g) Notify the Board of Directors of any lack or omission in which the Homeowners or occupants or visitors or any person that lends services to such Condominiums may incur, for the proceeding disciplinary measures to be taken.
- h) To pay or take necessary measures for the payments of taxes and other fiscal responsibilities that constitute o may constitute a lien upon the whole or partial General Common Areas and/or Exclusive Use Common Areas if it is justified.
- i) Delegate those Administrators faculties that are considered adequate to employees, administrators, independent contractors, the Administrator and in general to any person or entity.
- j) Prepare or modify rules that regulate the General Common Areas and/or Exclusive Use Common Areas in order to be approved by the Meeting.
- k) Enforce disciplinary procedures on Homeowners or occupants for breach of the present Regulation, when they are of application to the corresponding legal dispositions and the dispositions in effect, established in Article 61 of the present Regulation.
- l) Maintain a current registry of the addresses and contact information of each Homeowner, of the members of the Surveillance Committee, as well as any other information considered appropriate.
- m) Operate and provide maintenance for the General Common Areas and Exclusive Use Common Areas, as well as any of the installations located within such General Common Area and Exclusive Use Common Areas. The maintenance, including but not limited to, must include exterior paint, green area maintenance and repairs of the General Common Areas and Exclusive Use Common Areas, as well as the equipment

and accessories that the Administrator considers appropriate or necessary, the Administrator also having the faculty and responsibility of the acquisition for its destination to the common areas: however in the intelligence, that the interior parts of each Private Property Unit, as well as the interior parts of those exclusive use areas, by right of payment or easement, belongs to the Homeowner, shall be maintained, painted and repaired by the corresponding Homeowner, in such case being the corresponding maintenance costs and expenses by exclusive account of such Homeowner.

ARTICLE IX

USE OF VILLAS AND COMMON AREA (CONDOMINIUM PURPOSE)

The Villas and Common Area shall be occupied and used in the following manner:

Insert 1. Residential Use

Each Villa shall be exclusively used for residential purposes by the owner, his/her tenants or guests y for no other purpose.

PARTICULAR CONDITIONS OF PROPERTY

Each Occupant of the Private Property Units, shall act in and orderly and peaceful manner, according to morals of right and good customs, he/she shall abstain from carrying out acts that in any manner shall provoke disturbances to others, as well as incur in acts or omissions that occasionally endanger the correct or adequate solidity, security, sanity, reputation or presentation of each Private Property Unit, as well as the Condominium.

Each Condominium shall have the obligation to maintain his/her Private Property Unit in good conditions of use and service, according to the following norms:

A) The maximum number of occupants per Villa is restricted in the following manner: Villas 1,2,13 and 14 for a total of seven (7) people and Villas 3,4,5,6,7,8,9,10,11,12 for a total of five (5) people.

B) Each Homeowner must care for his/her Private Property Unit, and therefore, is obligated to maintain the construction in good conditions, as well as the elements and structures of such constructions.

C) Each Homeowner has the obligation to care for, maintain and repair on his/her own account the interior of each Private Property Unit.

D) No Homeowner may make alterations nor modifications that affect the structure or the exterior of his/her Private Property Unit without previous authorization of the Board of Directors.

E) Clothing in general, bedsheets, towels and similar items of who live in the Private Property Units shall not be permitted to hang from handrails, windows, balconies, terraces and other places that can be

observed from the exterior. Nor shall it be allowed to install cables nor cords that are used for this purpose, therefore, it shall not be allowed that Homeowners leave personal belongings of any type in the exterior of their Private Property Units.

F) Homeowners shall do their best to avoid the existence of elements or conditions that may generate illnesses or plagues. The Administrator shall order the destruction of insects and other harmful animals in the Private Property Units, in the Condominium, in the General Common Areas and Exclusive Use Common Areas, such as ants, rats, etc... and the related expenses shall be charged to the account of General Fees. However, products that may be harmful to people and plants may not be used.

G) All the Homeowners are obligated to maintain clean conditions in walkways and sidewalks that are in front of their Private Property Unit. It shall not be allowed to plant or hang trees, bushes or vegetation that interrupts pedestrians from passing on walkways or sidewalks. Any desired modification to the gardens must be approved by the Administrator and the Board of Directors.

For the carrying out of parties or get togethers in the General Common Areas AND/OR Exclusive Use Common Areas, previous authorization by writing from the Administrator and/or Board of Directors shall be required.

Also, the Owners must follow the restrictions of use, schedules and payment of an additional fee related to the event to the Administrator and shall be responsible for any damage that may result.

Insert 2. Pool and Pool Area

A) We do not have a lifeguard. All the residents and guests must make use of the pool at their own risk.

B) It is prohibited to introduce fragile or glass/crystal objects in the pool and fireplace area, only plastic or paper are allowed.

C) Other recreational activities in the pool that are not swimming are not permitted. Running, Frisbees, football and volleyball must be played on the beach.

D) The furniture in the pool area must not be removed under any circumstance. Do not drag the furniture.

E) Close the umbrella after use.

F) Children (under the age of 10 years) must be accompanied by an adult at the pool. Children that cannot control their sphincter, must use special diapers for use in water, as courtesy to other users.

G) It is recommended to use headphones or a moderate volume when you listen to music in the pool area or on the patios.

H) Use the water faucet located at the entrance to the beach to rinse off sand and sunscreen before entering the pool. Please close the faucet after use.

I) For your own safety and comfort, keep the door to the beach closed to avoid other people, vendors or dogs from other complexes.

Insert 3. Hydromassage/ jacuzzi

A) The hydromassage/ jacuzzi may only be used between 4:00pm and 10:00pm.

B) Children under the age of five years old are not allowed in the jacuzzi. Children between 5 and 12 years old must be accompanied by an adult.

Insert 4. Tennis Court

A) For exclusive use of tennis

B) Only use adequate shoes on the court

C) Children under the age of 10 must be accompanied by an adult

D) Maximum time is one hour, if others are waiting.

E) Please close the door after use.

Insert 5. Storage

There should be no obstruction in the common zone. Nothing shall be stored in the common area or on the patios and balconies, except normal domestic use items. Do not hang towels or clothing from the balconies. Automobiles and motorcycles should be stored in the adjoined garages assigned to the Villas. It is not allowed to store any vehicle propelled by natural gas in the interior of the Villa. It is recommended that the owners do not store propane tanks in the interior of their Villa.

Insert 6. Insurance Restrictions.

Nothing that increases the insurance rate may remain in the Villas, in the common areas or any other place of the Complex without previous written consent from the Board of Directors. No Owner may allow that something is carried out or stored in their Villa or in the Common Area that may cause the cancelation of the villa insurance or any breach of the law.

Insert 7. Use of Public Services

No change on Public Services of the Villa may be carried out by the owner without previous approval from the Board of Directors.

Insert 8. Signage

No type of signs may be placed in sight of any Villa or Common Area. The instructions in the Complex must be followed.

Insert 9. Pets

No animal or fowl may be raised in the villas or common areas. Domestic animals are not allowed under any circumstance. Wild cats within the complex are a nuisance, killing birds and must never be fed.

Insert 10. Disturbances

No harmful activities or illegal acts or anything that may disturb other owners, may be carried out in the Villas or Common Areas. Raucous music is not allowed at any moment. No noise from 10:00pm to 8:00am. Work hours to carry out repairs are from 8:00am to 6:00pm.

Insert 11. Structural Alterations.

Nothing may be modified, built, installed, stored or removed from the Common Zone or balconies, except all that expressly allowed in this Regulation, rules and norms of the association, with the written consent from the Board of Directors, as long as such alterations do not affect the structural integrity of any construction or alters the exterior aspect of any part of the same, with the permitted modifications to include, without limitation, the interior remodeling of the Villas (excluding weight bearing walls wherever they are located)

Insert 12. Combination of Villas

Adjacent Villas may be combined for their use as an individual residence with the previous approval of the Board of Directors. Before the council grants their consent for such combination (except the combinations carried out by the declarant previous to the transmission of all the condominiums), they must receive for their approval:

A) Architectural Plans

B) A certificate from a structural engineer with practice in the state of Baja California Sur and approved by the Board of Directors, stating that the parts of the common area affected by the proposed combination is not essential for structural support.

C) A tender by a contractor with practice in the state of Baja California Sur and approved by the Council establishing and estimate in cost and time of the proposed combination.

D) A bond naming the Council as joint obligor (or another value approved by the Council) to secure the prompt termination of the combination in a professional manner free from liens.

E) All the governmental and construction permits necessary for construction.

F) A detailed certificate from the electrical and plumbing contractor explaining the effect that such combination may cause in the affected Common Area. The Board of Directors must allow the reconstruction of Villas as independent Villas according to the Plan, as long as they receive the approval of the previous points (a) and (f). No Villa may be transferred or rented as an independent unless such remodeling has been carried out.

Insert 13. Parking

The parking areas shall be used exclusively for parking and storage of active automobiles and motorcycles. Boats, trailers, motorhomes, golf carts, jet skis and other recreational vehicles, may not be parked or stored in parking spaces, however these articles may be stored in the garages. No vehicle may be parked for long term in the common areas. Mayor repairs, construction and reconstruction of any vehicle or item may not be carried out in any part of the Complex. The parking spaces must be kept in good state. Any vehicle that is considered visually unpleasant or disturbing to other owners, shall be towed and parked in a public parking and the costs will be charged to the owner, under the condition that the owner received from the Board of Directors a written notification thirty (30) days prior to adapting such measures. All the visitors must park in the parking areas assigned for guests, for a maximum of 24 hours at a time. The parking areas should NOT be used as storage for vehicles, etc. The garages or oath to other units, must not be blocked nor obstructed.

Insert 14. Applicable Rules for Vehicles.

A) The speed limit in the parking lot and the paths and areas for automobiles shall be 10 kilometers per hour (6 miles per hour).

B) Any motor vehicle that emits excessive noise or releases more exhaust than normal or drips oil or any other type of grease, shall be reported to the Administrator too in return request the owner of the vehicle to abstain from its use within the Condominium. It is the responsibility of the users of the parking lot to clean the excess of grease or oil that their vehicles drip on the pavement.

C) It is strictly prohibited to repair vehicles in any area of the Condominium.

D) While the vehicles remain parked these must remain well closed for their own safety and may not be parked for more than 7 (seven) days without being used.

E) Its is prohibited to throw paper, trash or ashes from vehicles that are within the Condominium, parking or in movement.

F) The Administrator has the faculty to remove from the Condominium any vehicle that violates any of the rules, at the cost and expense of the Homeowner or Occupant of the Private Property Unit (offender).

G) No vehicle may be washed in common roadways, unless with water for use in the common areas.

H) No trailers, tents, vehicles or any other similar type may be introduced to the Condominium. Trailers, tents, vehicles and similar goods that are used during construction or repair of any Private Property Unit, must be immediately removed after such work has concluded.

I) Any trailers, boats, vehicles or any other similar good may not be placed, built, repaired or maintained in view of the Private Property Units in general.

Insert 15. Invasions

None of the rights and obligations of the owners created in this document or in a Deed must be modified in any way for the invasion made to structures or any other cause. The maintenance of such invasions in case of existing must be facilitated, however under the condition, that in no case shall the maintenance of the invasion be facilitated in favor of any owner(s) if such invasion was produced due to malicious conduct from such owner (s) after the transfer of that condominium by the declarant.

Insert 16. Roof

Television receptors, antennas or radio posts may not be equipped, placed or built in the Common Area or any other Unit that are visible from the exterior, except those installed and approved in writing by the Board of Directors.

Insert 17. Protections

White and off-white window coverings must be used.

Insert 18. Garbage Disposal.

It is strictly prohibited that the Homeowners and Occupants of the Villas throw or accumulate trash in the Private Property Areas or in the General Common Areas and Exclusive Use Common Areas. In all cases, the trash must be placed in closed plastic bags and deposited in containers for such effect. The containers must remain covered. The garbage collection shall be done a minimum of two days a week by instructions of the Administrator and the charge for such services shall be included on the account for Ordinary Fees.

Insert 19. Leasing

Any lease contract shall be presented in writing and must guarantee that any violation of this regulation shall be reason for termination of such contract. The Regulation and the Acts of Sompaguita shall be attached to the Lease Contract. Rentals of more than one month must be approved by the Board of Directors.

Insert 20. Guests and Short Term Rentals

Each owner shall be responsible for the fulfillment of the dispositions of the same by its short term guests, tenants and renters, and shall pay the moratorium and special fees according to this Regulation for the violations incurred by their guest or renter.

Insert 21. Architecture Norms of Construction and Renovation

Renovations to Villas that create a noise disturbance or implicates contractors must abide by the following:

1. Work Hours, shall be 8:00am to 5:00pm from Monday to Friday
2. Months in which the work shall begin and be completed shall be from May 15th to September 30th
3. The owners are obligated to provide to the Board of Directors and administrators the name and phone number of the contractor.
4. The Board of Directors shall notify the other owners with a prenotification of a minimum of 60 days prior to the beginning of renovations
5. All the windows and doors shall maintain closed during the renovations to diminish the sound levels and dust.
6. A maximum of 3 vehicles per contractor shall be allowed at the place during renovations.
7. All the residues must be removed by the contractor, the use of the trash area of Sampaguita shall not be allowed.
8. It is not allowed to throw debris outside the Sampaguita area.

ARTICLE XI

Entry for repairs

The Council or its representatives may enter any Private Unit, garage or storage when necessary regarding any maintenance, gardening construction operation, avoid disturbances or emergency situation for which the Board of Directors is responsible. The entry must be carried out avoiding disturbances to the owners as possible, and any damage caused by this fact must be repaired by the Council in detriment of the extraordinary fees, as long as such expenses may be reimbursed by the owner(s). Capital Fees, improvements or reconstruction, as long as they are justified. The expenses must be evaluated by the owner(s) of the Unit by a Special Fee and entry. If it is not urgent, the owner must be notified with at least twenty four (24) hours prior to entry, in case of not having the owners consent.

